



Tribunal File Number: * 2026-66162-I

Instructions:

For information on how to complete the form, read the [Respondent's Guide](#).

1. Respondent(s) Information (See [Respondent's Guide](#) for details.)

The Tribunal and other organizations or people involved in the Response will need to send materials to you on a regular basis. For this reason, we need your contact information. It is important that you provide the Tribunal with up-to-date contact information.

Type of Respondent *

☒ **Organization Respondent**

Name of organization/firm *

Triton Canada Inc.

Organization Type

☒ Corporation

☐ Partnership

☐ Sole proprietorship

☐ Unincorporated business/organization

☐ Other (specify):

Name of the person within this organization who is authorized to negotiate and bind the organization with respect to this Application.

Last name *

Sidhu

First name *

Harpreet

Title

General counsel, corporate

Address

Unit number

1503

Street number *

2235

Street name *

Sheppard Ave E

PO box

City *

North York

Province *

ON

Postal code *

M2J 5B5

Phone number *

416 659-2770

TTY

Other

Email address *

harpreet.sidhu@tritonverify.com

☐ **Individual Respondent**

Is this Response filed on behalf of other respondents named in the Application?

☐ Yes, all respondents.

☐ Yes, some respondents.

☒ No

2. Authorizing a Representative (See [Respondent's Guide](#) for details.)

Are you authorizing a lawyer or other representative to act for you? Please note, if you have a lawyer, paralegal or other person acting as your representative, all communication from the Tribunal and the applicant will be sent to that person.

☒ Yes, I authorize the person named below to represent me.

☐ No

Last name *

Champagne

First name *

Emmanuelle

Name of organization/firm (if applicable)

Gowling WLG (Canada) LLP

Address

Unit number

2600

Street number *

160

Street name *

Elgin

PO box

City *

Ottawa

Province *

ON

Postal code *

K1P 1C3

Phone number *

613 786-8692

TTY

Other

Email address *

emmanuelle.champagne@gowlingwlg.com

Type of representative: *

- ☒ Lawyer ☐ Paralegal Law Society of Ontario number 89354K
- ☐ Other - nature of exemption from licensing requirements (specify details below) ▼

3. Affected Person or Organization Information (See [Respondent's Guide](#) for details.)

If there is any other organization (such as a union or occupational association responsible for collective bargaining) or person who is not already identified as a respondent or union on the Application form and who might be affected by this Application to the Tribunal, provide their contact information here.

If you are providing contact information for more than one affected person, and you are filling this out on paper, attach another sheet of paper with the full contact information for each affected person. Number each page.

Type of Affected Person or Organization

- ☐ Affected Organization
- ☐ Affected Person(s)

4. Request for Early Dismissal of the Application without/with Full Response (See [Respondent's Guide](#) for details.)

4.1 Request for Dismissal without Full Response in accordance with rule 8.2

Complete this section only if you are requesting that the Tribunal dismiss the Application because one of the three situations below applies. Please check the box that applies.

Note: If you check any of the boxes below, in addition to attaching the document(s) requested, you must provide your argument (s) supporting your position that the Application should be dismissed. The Tribunal may decide your request based only on your submissions.

I request that the Tribunal dismiss this Application because:

- ☐ A claim based on the same facts has been filed in civil court, requesting a remedy based on the alleged human rights violation. (Attach a copy of the statement of claim and the court decision, if any.)
- ☐ The applicant signed a full and final release with respect to the same matter. (Attach a copy of the release.)
- ☐ The issues in dispute in the Application are within exclusive federal jurisdiction.

4.2 Request for Dismissal under s.45.1 of the Code with Full Response

Complete this section only if you are requesting that the Tribunal dismiss the Application because another proceeding has, in whole or in part, appropriately dealt with the substance of the Application. Please check the box below if you are making this request.

Note: If you check the box below, you must attach a copy of the document that started the proceeding and a copy of the decision, in addition to a complete argument(s) supporting your position that the Application should be dismissed.

- ☐ I request that the Tribunal dismiss the Application because another proceeding has, in whole or in part, appropriately dealt with the substance of the Application. Attach a copy of the decision and the document that started the other proceeding.

5. Request to Defer the Application (See [Respondent's Guide](#) for details.)

5.1 Request to Defer without Full Response (union grievance or arbitration proceeding) in accordance with Rule 8.2.1

Complete this section only if you are requesting that the Tribunal defer the Application because there is an ongoing union grievance or arbitration.

Note: If you check the box below, you must attach a copy of the document which commenced the grievance, confirm that the grievance or arbitration is ongoing and include argument(s) in support of your position that the Application should be deferred pending the conclusion of the grievance or arbitration. The Tribunal may decide your request based only on your submissions.

I request that the Tribunal defer this Application because:

- ☐ The issues in dispute are the subject of an ongoing grievance or arbitration brought pursuant to a collective agreement.

5.2 Request to Defer with Full Response (other proceeding)

Complete this section only if you're requesting that the Tribunal defer the Application because the facts or issues raised in the Application are part of another proceeding that is still in progress.

Note: If you check the box below, you must attach a copy of the document which commenced the other proceeding, confirm that the other proceeding is ongoing and include argument(s) in support of your position that the Application should be deferred pending the conclusion of the other proceeding. The Tribunal may decide your request based only on your submissions.

I request that the Tribunal defer this Application because:

☐ The facts or issues raised in the Application are the subject of another proceeding that is still in progress.

6. Responding to the Allegations in the Application (See [Respondent's Guide](#) for details.)

Please summarize the facts and defences that support your Response to this Application.

Please include as part of your Response:

- Any submissions you make that the Application is outside the Tribunal's jurisdiction;
- What allegations in the Application you agree with;
- What allegations in the Application you disagree with;
- Any additional facts that you intend to rely on; and
- Any defences that you intend to rely on.

If you are filling this out on paper and need more space, please add more pages. Please organize your information clearly, using numbered paragraphs. Number each page.

1. [See Schedule "A"](#).

7. Exemptions (See [Respondent's Guide](#) for details.)

Complete this section only if you are relying on one of the exemptions found in the *Code*.

What exemption in the *Code* do you believe applies to this Application?

Please explain why you believe the exemption applies.

8. Declaration and Signature (See [Respondent's Guide](#) for details.)

Instructions: Do not sign your Response until you are sure that you understand what you are declaring here.

To the best of my knowledge, the information in my Response is complete and accurate.

Respondent's signature (If filing electronically, sign by typing your name here.) *

[Emmanuelle Champagne](#)

Date (dd/mm/yyyy) *

[30/04/2026](#)

You must sign and date this Response. Only a licensed lawyer or paralegal can sign this Response on behalf of their client and only after ensuring they comply with the Tribunal's [Practice Direction on Electronic Filing by Licensed Representatives](#).

Collection of Information:

The Human Rights Tribunal of Ontario (HRT) has the right under the *Human Rights Code* and the *Statutory Powers Procedure Act* to collect the information requested on this form to fulfill its legislative mandate. After you file the form, all information related to the proceeding may become publicly available in a tribunal decision, order, or other document, in accordance with Tribunals Ontario's Access to Records Policy and the *Tribunal Adjudicative Records Act, 2019*. Parties wanting records or information to remain confidential must seek a confidentiality order from an adjudicator. If you have questions about confidentiality orders or access to records, please contact us by email at HRTO.registrar@ontario.ca or at 416-326-1312 or 1-866-598-0322 (toll-free).

SCHEDULE "A"

Tribunal File No.: 2026-66162-I

ONTARIO
HUMAN RIGHTS TRIBUNAL

B E T W E E N:

CHONG TAN

Applicant

and

TRITON CANADA INC.

Respondent

RESPONSE OF TRITON CANADA INC.

April 30, 2026

GOWLING WLG (CANADA) LLP

2600-160 Elgin Street
Ottawa ON K1P 1C3

Emmanuelle Champagne (89354K)

T 613.786.8692

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Lawyer for the Respondent

PART I – OVERVIEW

1. The present document, together with Form 2, constitutes the Response of the Respondent, Triton Canada Inc. [hereinafter “Triton” or the “Respondent”], to the Application before the Human Rights Tribunal of Ontario [hereinafter the “Tribunal”] filed by Chong Tan [hereinafter “Ms. Tan” or the “Applicant”] under Tribunal File No. 2026-66162-I.
2. Except as expressly admitted herein, the Respondent specifically denies the allegations set out in the Application and puts the Applicant to the strict proof thereof. In particular, the Respondent denies that the Applicant is entitled to the relief in the Application.
3. The Applicant filed an application alleging discrimination on the basis of the place of origin and citizenship with respect to goods, services and facilities contrary to the *Human Rights Code*, R.S.O. 1990, c. H.19, as amended [hereinafter the “Code”]. Specifically, the Application alleges that the Applicant was discriminated against by the Respondent when it provided a document requesting personal information for screening purposes for citizens of the People’s Republic of China.
4. The Respondent submits that the Application falls outside the Tribunal’s jurisdiction, as it fails to link the alleged *Code*-protected ground to the adverse treatment the Application allegedly received.
5. The Respondent submits that its actions were not discriminatory and were entirely unrelated to the Applicant’s place of origin, citizenship or any other ground protected by the *Code*. Moreover, the Applicant did not suffer a disadvantage or an adverse impact. The Application fails to explain how the use of a standardized, vendor-mandated document amounts to adverse treatment, let alone discriminatory treatment under the *Code*.
6. The Tribunal has no jurisdiction over privacy issues. The Applicant provided no evidence that the Respondent’s alleged privacy breach had any connection to the

Code. The Applicant's allegation regarding the Respondent's privacy breach therefore has no reasonable prospect of success.

7. Accordingly, the Respondent respectfully requests a jurisdictional dismissal of the Application pursuant to Rule 13 and 19 of the Tribunal's *Rules of Procedure* or that the Application be summarily dismissed pursuant to Rule 19A of the Tribunal's *Rules of Procedure*, on the basis that there is no reasonable prospect of success.

PART II – FACTS

8. Triton is a corporation incorporated under the laws of the province of Ontario, with its registered office located in Toronto. Triton provides pre-employment screening and background check services to customers across Canada.
9. Ms. Tan is an individual residing in North York, Ontario. She is a citizen of the People's Republic of China [hereinafter "PRC"]. At all material times, Ms. Tan was a customer of Triton for the purpose of obtaining background screening services.
10. On or about March 24, 2025, Ms. Tan purchased a "Criminal Record Check" and "International Criminal Records" verification from Triton, under the Government's Program Area Manager program (Service Category 2 - Package 1A). In connection with these services, Ms. Tan was required to provide certain personal information to enable Triton and its third-party vendors to conduct the requested screenings.
11. As part of the International Criminal Records Verification for PRC citizens, Triton provided Ms. Tan with a document titled "Personal Details Sheet for Screening Purposes for PRC Citizens" (English title) [hereinafter the "Form"]. The Form was primarily written in Mandarin, with select headings in English, and included a Letter of Authorization.
12. The Form is a document supplied by Triton's third-party vendor responsible for PRC international criminal record searches. This Form has consistently been used by Triton for customers who are PRC citizens, as it is required by the vendor to conduct

searches within that jurisdiction. Without a completed Form, the vendor will not accept the application to perform the required search for China.

13. Ms. Tan completed and submitted all required information for the Criminal Record Check, the International Criminal Records verification, and the TransUnion Online Identity Verification process. Ms. Tan completed the Form.
14. Upon receipt of the required information, Triton assigned the Criminal Record Check and the International Criminal Records verification to the appropriate screening agents for processing.
15. Ms. Tan successfully cleared the Criminal Record Check and the International Criminal Records Verification. She also successfully passed the TransUnion Online Identity Verification.

PART III – ISSUES

16. The Respondent submits that the issues before the Tribunal are as follows:
 - a. Should the Application be dismissed, at an early stage, on the basis that it falls outside the Tribunal's jurisdiction?
 - b. Can the Applicant prove, on a balance of probabilities that the Respondent discriminated against her based on her place of origin or citizenship under the *Code*?
 - c. Should the Application be dismissed, at an early stage, as there is no reasonable prospect that the Application or part of the Application will succeed?

PART IV – RESPONSE TO ALLEGATIONS

A. The Application Falls Outside the Tribunal's Jurisdiction

17. The Respondent submits that the Application should be dismissed entirely by the Tribunal as it falls outside the Tribunal's jurisdiction.

18. Rule 13.1 of *Rules of Procedure* of the Tribunal provides that:

The Tribunal may, on its own initiative or at the request of a Respondent, filed under Rule 19, dismiss part or all of an Application that is outside the jurisdiction of the Tribunal.

19. The Tribunal resolves claims of discrimination brought under the *Code*. The *Code* prohibits actions that discriminate against people based on a protected ground in a protected social area. The Tribunal's authority is limited to the enforcement of the *Code*. If the Application fails to link the Applicant's *Code* grounds to the adverse treatment that the applicant received, the Application will be outside of the Tribunal's jurisdiction.
20. This means that even if an applicant has been treated unfairly, the Tribunal may not have the legal authority to adjudicate their claim.
21. For a matter to fall within the Tribunal's jurisdiction, an applicant must provide some factual basis beyond a bald assertion linking their grounds to actions taken by the respondent and provide an explanation as to why they think that these actions were discriminatory in nature.¹
22. The Tribunal determines jurisdictional issues on a balance of probabilities.²
23. As noted by the Divisional Court in *Iyirhiaro v. Human Rights Tribunal of Ontario and TTC*, 2012 ONSC 3015, the Tribunal is not required to hold an oral hearing on the issue of its jurisdiction.³
24. The Respondent submits that even if the Application identified enumerated *Code* grounds (place of origin and citizenship), the Application does not explain how the Applicant received adverse treatment at the hands of the Respondent, and further does not explain why the Applicant believes that the adverse treatment occurred as a result of her place of origin and her citizenship. Absent particulars explaining how

¹ *Forde v. Elementary Teachers' Federation of Ontario*, [2011 HRTO 1389 at para 17](#).

² *Bokhari v. Top Medical Transportation Services*, [2024 HRTO 229 at paras 19-23](#).

³ *Iyirhiaro v. Human Rights Tribunal of Ontario and TTC*, [2012 ONSC 3015](#).

these actions were discriminatory within the meaning of the *Code*, the Application falls outside the Tribunal's jurisdiction.

25. Further, the Tribunal has previously stated that it has no jurisdiction over privacy issues.⁴ The Applicant provided no evidence that the Respondent's alleged privacy breach had any connection to the *Code*.⁵

B. The Respondent did not Discriminate against the Applicant based on her Place of Origin or Citizenship under the *Code*

26. The onus lies on the Applicant to establish a *prima facie* case of discrimination. To meet this burden, the Applicant must show that she can establish "[...] a foundation upon which the Tribunal could find not only that the applicant was mistreated, but that [she] was mistreated on the basis of a prohibited ground under the *Code*".⁶
27. To meet the traditional three step test for *prima facie* discrimination, the Applicant must show that:⁷
- a. The applicant has a protected characteristic under the *Code*;
 - b. The applicant suffered a disadvantage or an adverse impact; and
 - c. The protected characteristic was a factor in the disadvantage or adverse impact.
28. Even if the Applicant is found to have a *Code*-protected characteristic, the Application fails at the second and third stages of the test. The Applicant did not experience any disadvantage or adverse impact, nor has she established a nexus between any alleged treatment and a prohibited ground.
29. The undisputed facts demonstrate that:

⁴ *Saxon v. Amherstburg Police Services Board*, [2013 HRTO 681 at para 14](#).

⁵ *Saxon v. Amherstburg Police Services Board*, [2013 HRTO 681 at para 14](#).

⁶ *Howard v. 407 ETR Concession*, [2011 HRTO 1511 at para 17](#).

⁷ *Moore v. British Columbia (Education)*, [2012 SCC 61 at para 33](#).

- the Applicant voluntarily purchased background screening services from the Respondent;
- the Applicant completed all required steps necessary to conduct the screenings;
- the Applicant successfully cleared and passed all screenings; and
- no service was denied, delayed, restricted, or withheld from the Applicant at any time.

30. These facts are inconsistent with a finding that the Applicant experienced adverse treatment within the meaning of the *Code*.

i. The Use of the Form

31. The Applicant appears to take issue with the requirement to complete the Form. This Form is a vendor-supplied requirement used consistently for PRC international criminal record searches and is applied uniformly to all individuals for whom such searches are conducted. The Form is jurisdiction-specific, not identity-based.

32. The Application does not plead facts capable of supporting that the use of this Form constituted adverse treatment or that it had any discriminatory effect. The Form did not delay or prevent the completion of the Applicant's screening, and the Applicant successfully cleared all required checks.

33. The mere existence of administrative requirements linked to foreign jurisdictions does not constitute discrimination. The Application fails to explain how the use of a standardized, vendor-mandated document amounts to adverse treatment, let alone discriminatory treatment under the *Code*.

ii. The Correspondence from Triton

34. The Applicant alleges that she corresponded with Triton regarding the use of the Form and that Triton's responses were "dismissive" and demonstrated a lack of

understanding or concern regarding data handling practices. However, the Applicant does not explain how or why the alleged adverse treatment was *because of* her place of origin and citizenship.

35. In *Gaspar v. Windsor Police Service*, the applicant alleged that he was dismissed in his emails and requests. He pointed to an email he received: “take me off your list please as I can’t help you.” He stated that the email came after he had identified himself as Brazilian and living abroad.⁸ The Tribunal determined:⁹

The temporal juxtaposition of these two events is simply insufficient to draw an inference that one was linked to the other – that the respondent “can’t help” because the applicant was Brazilian. And, again, his status as being out of the country when his complaints were made is not *Code*-protected. Absent additional detail or clarity in his submissions, the applicant’s allegations amount to speculation and assertions without foundation.

36. Further, and as stated above, the Tribunal is not in a position to assess privacy issues, including data handling practices.¹⁰
37. At all times, the Respondent acted in conformity with the requirements of the *Code*. The Respondent denies that they treated the Applicant in an unequal manner or subjected the Applicant to differential treatment on the basis of a prohibited ground and puts the Applicant to the strict proof thereof.

C. The Remedy Sought is Unwarranted and Inappropriate

38. The Respondent submits that it is not liable for the damages claimed in the Application as they are not a result of any wrongdoing on the part of the Respondent, are excessive and/or too remote. The Respondent puts the Applicant to the strict proof thereof.
39. The Applicant seeks the following remedies:

⁸ *Gaspar v. Windsor Police Service*, [2026 HRTO 101 at paras 12-13](#).

⁹ *Gaspar v. Windsor Police Service*, [2026 HRTO 101 at para 13](#).

¹⁰ *Saxon v. Amherstburg Police Services Board*, [2013 HRTO 681 at para 14](#).

- a. Monetary compensation in the amount of \$5,000 for injury to dignity, feelings, and self-respect;
 - b. An order requiring Triton to cease the use of the Form and implement alternative verification procedures for Chinese applicants that respect privacy and human rights;
 - c. An order requiring Triton to provide mandatory human rights and cultural sensitivity training to all staff involved in international background screenings, focusing on the prevention of discrimination based on the place of origin and citizenship.
40. The Respondent maintains its position that no remedy, monetary, non-monetary or remedy for future compliance, is warranted or appropriate in the circumstances.
41. Further, the Respondent states that the damages claimed by the Applicant of \$5,000 are excessive and not in keeping with the purposes of the *Code*.
42. The Respondent submits that the Applicant failed to take reasonable steps to mitigate her damages.

PART V – CONCLUSION

43. To conclude, the Respondent submits that the allegations against them fall outside of the Tribunal's jurisdiction and should be dismissed.
44. Further, the Respondent submits that there is no evidence that their actions were in any way related to or resulting from the Applicant's place of origin and/or citizenship with respect to goods, services and facilities, or any other ground prohibited by the *Code*.
45. For the foregoing reasons, the Respondent respectfully submits that the allegations of discrimination against them are without merit, and the Application should therefore be dismissed, with costs.

PART VI – REQUEST FOR SUMMARY HEARING

46. The Respondent submits that the Application should be dismissed entirely by the Tribunal as there is no reasonable prospect that the Application will succeed.

47. Rule 19A.1 of the *Rules of Procedure* of the Tribunal provides that:

The Tribunal may hold a summary hearing, on its own initiative or at the request of a party, on the question of whether an Application should be dismissed in whole or in part on the basis that there is no reasonable prospect that the Application or part of the Application will succeed.

48. In *Dabic v. Windsor Police Service*, 2010 HRTO 1994, the Tribunal reviewed types of inquiries which may be involved in a summary hearing pursuant to Rule 19A.1:¹¹

[8] In some cases, the issue at the summary hearing may be whether, assuming all the allegations in the application to be true, it has a reasonable prospect of success. In these cases, the focus will generally be on the legal analysis and whether what the applicant alleges may be reasonably considered to amount to a Code violation.

[9] In other cases, the focus of the summary hearing may be on whether there is a reasonable prospect that the applicant can prove, on a balance of probabilities, that his or her Code rights were violated. Often, such cases will deal with whether the applicant can show a link between an event and the grounds upon which he or she makes the claim. The issue will be whether there is a reasonable prospect that evidence the applicant has or that is reasonably available to him or her can show a link between the event and the alleged prohibited ground.

49. For the reasons set out above, the Respondent submits that the Application does not have a reasonable prospect of success.

50. There are no facts alleged that, if assumed to be true, would allow the Tribunal to conclude that the Respondent's actions were made in a discriminatory or arbitrary manner. The allegations in the Application do not amount to any *Code* violation.

¹¹ *Dabic v. Windsor Police Service*, [2010 HRTO 1994 at paras 8-9](#).

51. Furthermore, there is no reasonable prospect that the Applicant can prove, on a balance of probabilities, that her *Code* rights were violated by the Respondent, as the allegations are not linked to any ground of discrimination.
52. The Tribunal has no jurisdiction over privacy issues. Further, the Applicant provided no evidence that the Respondent's alleged privacy breach had any connection to the *Code*. The Applicant's allegation regarding the Respondent's privacy breach therefore has no reasonable prospect of success.¹²
53. In the circumstances, the Respondents request that the allegations as against them be dismissed by way of Summary Hearing.

Date: April 30, 2026

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Lawyers for the Respondent

¹² *Saxon v. Amherstburg Police Services Board*, [2013 HRTO 681 at para 14](#).